

cause of action” or if the complaint is uncertain. CCP § 430.10(e)-(f). The Court “treat[s] the demurrer as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law.” *Hood v. Hacienda La Puente Unified School District* (1998) 65 Cal. App. 4th 435, 438. No matter how unlikely, a plaintiff’s allegations must be accepted as true for the purpose of ruling on a demurrer. *Del. E. Webb Corp. v. Structural Materials Co.* (1981) 123 Cal. App. 3d 593, 604. A plaintiff must plead ultimate facts that acquaint the defendant with the nature, source and extent of plaintiff’s causes of action. *Doe v. City of Los Angeles* (2007) 42 Cal. 4th 542, 550.

Defendant demurs to the Complaint on the grounds that Plaintiff failed to state facts to constitute a cause of action and failed to plead essential elements necessary to establish liability. The Complaint ultimately alleges that Plaintiff was wrongfully removed from the subject premises. Defendant contends that Plaintiff failed to establish that a tenancy existed. The Complaint fails to plead the necessary elements of a tenancy thus giving Plaintiff the right to occupy the premises. The First Amended Complaint that Plaintiff attempted to file shows that these issues may be sufficiently addressed by the filing of an amended complaint.

The Demurrer is **SUSTAINED** with leave to amend. Defendant has provided a proposed order which will be modified to reflect the Court’s ruling. Plaintiff shall file an Amended Complaint within 15 days of service of notice of entry of order.

MANION VS. HAT CREEK CONSTRUCTION & MATERIALS, INC.

CASE NUMBER: 24CV-0205505

Tentative Ruling on Motion for Final Approval of Class Action Settlement: Plaintiff Donald Manion brought this wage and hour class action and Private Attorneys General Act (“PAGA”) matter against Defendant Hat Creek Construction & Materials, Inc. The parties have settled the matter for a total of \$480,000. On February 4, 2026, the Court issued an order granting preliminary approval of the settlement and which certified the class.

Final Approval of the Settlement. The proposed final breakdown for the settlement is as follows:

Total Settlement Amount	\$480,000
Proposed Attorneys’ Fees (33 1/3%)	-\$160,000
Litigation Costs and Expenses	-\$15,185.30
Settlement Administration Costs	-\$6,500
Proposed Class Representative Service Payment	-\$10,000.00
PAGA Claim Settlement Allocation	\$20,000
Payment to Labor and Workforce Development Agency (LWDA) (75%)	(-\$15,000)
Payment to Class Members (25%)	(\$5,000)
Net Settlement Amount	\$268,314.70

The settlement class is comprised of 342 individuals. Individual payments are based on a pro rata amount of pay periods worked during the class period. No claim form was necessary to participate in the settlement. Unless a class member opted out, they will receive a payment based on the time worked as calculated by the settlement administrator.

In deciding whether a class settlement is sufficiently fair, adequate and reasonable to warrant granting final approval, the Court considers several factors, including: 1) the amount offered in

settlement; 2) the strength of plaintiff's case and the risks inherent in the continued litigation; 3) the extent of discovery completed and the state of the proceedings when the settlement was reached; 4) the complexity, expense, and likely duration of the litigation in the absence of settlement; 5) the experience and views of class counsel; and 6) the reaction of class members to the proposed settlement. *Wershba v. Apple Computer* (2001) 91 Cal. App. 4th 224, 244-45. A presumption of fairness exists where (1) settlement is reached through arm's-length bargaining; (2) investigation and discovery are sufficient to allow counsel and the court to act intelligently; (3) counsel is experienced in similar litigation; and (4) the percentage of objectors is low. *Nordstrom Com'n. Cases* (2010) 186 Cal. App. 4th 576, 581.

The factors here weigh in favor of granting final approval. Plaintiff has complied with the terms of the Court's Order preliminarily approving of the settlement. In granting preliminary approval, the Court found that Plaintiff's assessment of the value of the class claims was sufficient for the Court to determine that the settlement amount was within the range of reasonableness. Plaintiff has shown that Class Counsel is experienced in wage and hour class action litigation, including settlement, and that before entering into the proposed settlement, counsel thoroughly investigated and engaged in discovery regarding the factual and legal issues in this lawsuit. Plaintiff has further demonstrated that the parties engaged in arm's length bargaining by participating in mediation before an experienced wage-an-hour class-action mediator. Lastly, the overall reaction of the class to the proposed settlement was overwhelmingly positive. Notice was provided to 99% of the class members and not one class member objected. No requests for exclusion or objections were received. With the Court already having preliminarily approved this settlement, Plaintiff having complied with the terms of the Court's February 4, 2026 Order, and no objection being raised, there does not appear to be any reason why the Court should not now grant final approval of the settlement.

Costs and Expenses. Plaintiff seeks reimbursement for costs and expenses of \$15,185.30. The Court preliminary approved costs up to \$25,000. The incurred and anticipated costs appear to be appropriate. The Court finds that the \$15,185.30 in costs and expenses incurred by Plaintiff's counsel are reasonable and were necessary to the prosecution of this action.

Enhancement Award. Plaintiff requests a class representative enhancement payment of \$10,000 for Donald Manion. This amount was expressly stated in the class notice. The Court considers the following factors in determining whether to award the class representative an enhancement award: (1) the risk to the class representative in commencing suit, both financial and otherwise; (2) the notoriety and personal difficulties encountered by the class representative; (3) the amount of time and effort spent by the class representative; (4) the duration of the litigation and; (5) the personal benefit (or lack thereof) enjoyed by the class representative as a result of the litigation. *In re Cellphone Fee Termination Cases* (2010) 186 Cal. App. 4th 1380, 1394-95, citing *Van Vracken v. Atlantic Richfield Co.* (1995) 901 F. Supp. 294, 299. Plaintiff assisted counsel on many occasions with the investigation and prosecution of this case. Plaintiff provided documentation and relevant information to counsel and spent numerous hours educating counsel on the inner workings of Defendant's operations and timekeeping practice. Plaintiff also participated in the mediation. Plaintiff's efforts have resulted in a monetary benefit to the class members and the State of California. Plaintiff took a risk in bringing the litigation and also signed a general release that the rest of the class did not sign. There has been no objection by any member of the class to the enhancement award. The Court finds that the \$10,000 class representative enhancement award to Plaintiff Donald Manion is reasonable.

Settlement Administration Costs. The Court authorized Phoenix Settlement Administrators (“Phoenix”) as the settlement administrator with an estimated cost of up to \$8,000, however, the actual request is for \$6,500. Connor Tevenan, a case manager for Phoenix, provided a declaration that details the work done by Phoenix. Mr. Tevenan also provides a Fixed Fee Invoice showing a charge of \$6,500 for Phoenix’s services. The Court finds \$6,500 to be reasonable for settlement administration costs.

Attorneys’ Fees. Plaintiff is requesting attorneys’ fees of 1/3 the settlement amount, or \$160,000, and argues that the requested fees are reasonable under the common fund doctrine and a lodestar cross-check. Under the common fund doctrine, “when a number of persons are entitled in common to a specific fund, and an action brought by a plaintiff or plaintiffs for the benefit of all results in the creation or preservation of that fund, such plaintiff or plaintiffs may be awarded attorney's fees out of the fund.” *Serrano v. Priest* (1977) 20 Cal. 3d 25, 34. Under the lodestar method, a base fee amount is calculated from a compilation of time reasonably spent on the case and the reasonable hourly compensation of the attorney. This base amount is then potentially adjusted using multipliers based on various factors. *Id.* at 48.

The California Supreme Court case of *Laffitte v. Robert Half Intern. Inc.* (2016) 1 Cal. 5th 480 is instructive for evaluating the reasonableness of the instant attorneys’ fees request. *Laffitte* held that when a settlement agreement creates a non-reversionary fund, the trial court may calculate attorneys’ fees as a percentage of the common fund. There, the Court affirmed an attorneys’ fees award of 33.33% of a common fund and found that there are recognized advantages of the percentage method over the lodestar method, “including relative ease of calculation, alignment of incentives between counsel and the class, a better approximation of market conditions in a contingency case, and the encouragement it provides counsel to seek an early settlement and avoid unnecessarily prolonging the litigation.” *Id.* at 503. The trial court may cross-check a common fund attorneys’ fees award with an abbreviated lodestar calculation for the purpose of “bringing a measure of the time spent by counsel into the trial court's reasonableness determination.” *Id.* at 505. Lodestar is calculated by multiplying reasonable attorney time spent by a reasonable hourly rate. *PLCM Group v. Drexler* (2000) 22 Cal. 4th 1084, 1095. A reasonable hourly rate is based upon the prevailing rate for similar work in the pertinent geographic region. *Id.* However, the lodestar calculation is not meant to override the common fund percentage determination and does not impose an absolute maximum or minimum on the fee award. *Laffitte, supra*, 1 Cal. 5th at 504-505. Only when the multiplier calculated by lodestar cross-check is extraordinarily high or low should the Court consider adjusting the percentage to bring the multiplier within a justifiable range. *Id.* at 505.

A lodestar cross-check thus provides a mechanism for bringing an objective measure of the work performed into the calculation of a reasonable attorney fee. If a comparison between the percentage and lodestar calculations produces an imputed multiplier far outside the normal range, indicating that the percentage fee will reward counsel for their services at an extraordinary rate even accounting for the factors customarily used to enhance a lodestar fee, the trial court will have reason to reexamine its choice of a percentage. (Walker & Horwich, *supra*, 18 Geo. J. Legal Ethics at p. 1463.)

Laffitte v. Robert Half Internat. Inc.(2016) 1 Cal. 5th 480, 504.

Plaintiff has provided evidence that 141 hours will be spent on the case between counsel Mehrdad Bokhour and counsel Joshua Falakassa. Based on the rates suggested, the lodestar would be \$104,087.50. This results in a multiplier of 1.53. “Multipliers can range from 2 to 4 or even higher.” *Wershba v. Apple Computer, Inc.* (2001) 91 Cal. App. 4th 224, 255 (overruled on other grounds in *Hernandez v. Restoration Hardware, Inc.* (2018) 4 Cal. 5th 260). The Court finds the 1.53 multiplier is not “extraordinarily high.” *Laffitte, supra* 1 Cal.5th at 505. The Court finds that the multiplier is appropriate and that attorney’s fees will be awarded in the amount of \$160,000.

The motion is **GRANTED**. Plaintiff submitted a Proposed Order. The Court retains jurisdiction pursuant to CRC 3.769(h). The Court sets the matter on **Monday, May 3, 2027 at 9:00 a.m. in Department 63** for a hearing on compliance. Prior to the hearing, Plaintiff is expected to provide evidence that the settlement checks were mailed, that any unclaimed funds were paid to the *cy pres* recipient Legal Services of Northern California, and that all fees and costs have been paid as outlined above. Evidence should be filed no later than April 26, 2027.

MCCRACKEN VS. MIRANDA

CASE NUMBER: 25CV-0207647

Tentative Ruling on Motion to Enforce Settlement Agreement and Enter Judgment Pursuant to CCP § 664.6: Plaintiff Dustin McCracken moves for entry of judgment and enforcement of a written settlement agreement. Defendant Geniveve Miranda does not oppose entry of judgment but does oppose enforcement of the agreement. Defendant’s opposition was untimely. Despite Plaintiff’s objection to the untimely filing, the Court in its discretion will consider the opposition.

Merits. This matter settled pursuant to the parties written settlement agreement executed on October 2, 2025. As part of the written agreement, the parties stipulated to the Court retaining jurisdiction under § 664.6. CCP § 664.6(a) reads:

If parties to pending litigation stipulate, in a writing signed by the parties outside of the presence of the court or orally before the court, for settlement of the case, or part thereof, the court, upon motion, may enter judgment pursuant to the terms of the settlement. If requested by the parties, the court may retain jurisdiction over the parties to enforce the settlement until performance in full of the terms of the settlement.

CCP § 664.6.

Both parties agree to entry of judgment of the settlement agreement, to sell the property, and do not dispute the terms of the agreement. Upon review of the evidence, it appears that neither party has acted in compliance with the settlement agreement therefore enforcement is currently inappropriate. Plaintiff contends that Defendant breached the agreement when she refused to accept a third-party offer to purchase the property and moved back into the home. Defendant contends that her conduct was authorized by a take-over provision when Plaintiff initially breached the agreement by failing to perform all agreed upon repairs and the repairs that were initiated were not completed in the manner specified by the agreement. Defendant submitted evidence that shows that at least some of the initial repairs were not completed prior to listing. The parties do not dispute that an offer was not received within 14-days following completion of the repairs that were done, and the photos show that subsequent required repairs were also not completed. Pursuant to the agreement, Plaintiff’s failure to complete the repairs in the time agreed triggered a provision which permitted Defendant to hire a licensed contractor and new listing agent. The agreement does not